RATIO / CASE READING SHEET

Gridin v. Russian Federation

UN Human Rights Committee | CCPR/C/69/D/770/1997 | Russian Federation | 2000

Public-reference AI draft | source quotes and PDF pages verified; interpretation needs review

Ratio reading aid, not an official case summary. Verify against the full judgment before use. No assessment of an individual case's prospects.

Forum and procedural stage

The communication was submitted to the UN Human Rights Committee under the CCPR, identified as Communication No. 770/1997, and the Committee issued its Views on 18 July 2000.

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Material facts

The author was detained on 25 November 1989, allegedly without a warrant until 29 November, denied legal assistance until 6 December, subjected to 48 hours of interrogation without food or sleep, and later sentenced to death (commuted to life imprisonment). The trial environment was hostile, with media prejudice and intimidation of witnesses and defence counsel.

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Issue and actual outcome

The author alleged violations of article 14(1) (fair trial) and article 14(2) (presumption of innocence). The Committee concluded that the State violated article 14(2) by failing to restrain public officials from prejudicing the trial, but found no violation of article 14(1) regarding the overall fairness of the proceedings.

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Deciding body's reasoning

The Committee applied General Comment No. 13 on article 14, emphasizing the duty of authorities to refrain from prejudging outcomes. It noted that high-ranking officials publicly declared the author guilty, which breached the restraint required by article 14(2). The lack of specific address of the presumption-of-innocence claim by the Supreme Court was highlighted as insufficient.

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General comparison factors and limits

The Committee reminded the State of its obligations under article 2 of the Covenant to provide effective remedies and to report measures taken within 90 days, reflecting the standard procedural follow-up required in CCPR cases.

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